

HEADNOTE

“1. If the appellant applies to withdraw an appeal in relation to one or two of several respondents, the Court of Appeal decides on the admissibility and legal consequences of such an application. The Court of Appeal will consider whether those respondents have already been served the Statement of grounds of appeal, whether they want the appeal to be adjudicated in relation to themselves as respondents and whether they have a legitimate interest in adjudication.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 2 792 100

METHOD AND DEVICE FOR SECURE
COMMUNICATIONS OVER A
NETWORK USING A HARDWARE
SECURITY ENGINE

KEYWORDS

Appeal

withdrawal

SUMMARY

The Court of Appeal Luxembourg issued a procedural order. The patent at issue relates to a method and device for secure communications over a network using a hardware security engine. According to the headnotes of the decision, when an appellant seeks to withdraw an appeal against only some of multiple respondents, the Court of Appeal must assess both the admissibility of that withdrawal and its legal consequences by examining whether the remaining respondents have been served, whether they wish the appeal to continue, and whether they have a legitimate interest in the court's ruling.